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California Democrats open special session to Trump-proof state priorities

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California lawmakers kicked off a special session of the state Legislature on Monday. The reason? To fund a $25 million war chest for anticipated legal battles with incoming President Donald Trump's administration.

As nearly 30 new state lawmakers were sworn into office at the state Capitol in Sacramento, legislative leaders gaveled in a special session called by Gov. Gavin Newsom that's geared toward protecting undocumented immigrants, reproductive rights, climate policy and more from Trump's second administration. The regular, two-year legislative session also began Monday, but the special session will allow for a speedier lawmaking process.

Newsom has requested the funding for the state Department of Justice and other agencies, which are expected to file a flurry of lawsuits challenging Trump policies — as California Democrats did during the president's first term. The governor's ask was introduced in bills Monday by Assemblymember Jesse Gabriel, an Encino Democrat who chairs the body's budget committee.

"We will work with the incoming administration and we want President Trump to succeed in serving all Americans," Newsom said in a statement. "But when there is overreach, when lives are threatened, when rights and freedoms are targeted, we will take action."

Newsom expects to sign the legislation before Trump is sworn in on Jan. 20, and top Democratic lawmakers are on board. They'll do the bulk of that work in early January after a break, said Assemblymember Marc Berman, a Menlo Park Democrat.

"Just like eight years ago, California must once again do everything we can to protect our 39 million residents and our economy," he said in an email. "During both the special session and the regular session, we must double down on policies to defend reproductive freedom and autonomy, protect the environment, and invest in science and education."

Republicans, however, blasted the special session as a tone-deaf stunt to raise Newsom's profile as a Trump foil. Politics observers say the Democratic governor almost surely will run for president in 2028, after his final term ends.

"Instead of taking the hint that Californians are growing tired of Democrat incompetence, Newsom is doubling down on his extreme agenda and using his special session to 'Trump-proof' California with taxpayer dollars," California GOP Chairwoman Jessica Millan Patterson said in an email. "It's clear that Gavin Newsom's 2028 presidential run is now underway, and Californians are simply pawns in his game."

The $25 million set aside for litigation would be a tiny fraction of California's $288 billion 2024-25 operating budget. But approving that budget required a series of measures to close a $27.6 billion deficit, including dipping into reserves. It was unclear Monday whether funding legal wars with Trump would come at the expense of other programs.

On the campaign trail, Trump slammed California as a den of crime, rampant inflation and homelessness, while taking shots at the Golden State's top Democrats. He also pledged to use the military to conduct mass deportations of immigrants without proper documentation, fueling anxieties of a "worst-case scenario" among Bay Area immigrant advocates. Democrats including U.S. Senator Alex Padilla, Newsom and Attorney General Rob Bonta say they'll staunchly defend immigrants and will not cooperate with deportations.

Bonta also announced Monday that lawmakers are sponsoring bills to ensure Californians can access medication abortions and empowering the attorney general to seek fines from local governments that restrict abortion providers.

"I want to make it unequivocally clear: California will remain a safe haven for reproductive rights and access to abortion care, no matter who is in the White House," Bonta, a potential candidate to succeed Newsom, said in a statement.

After Trump's victory last month, Newsom and California Democrats quickly laid the groundwork to oppose the incoming Republican administration. It's a reprise role. During Trump's first term, California filed 122 lawsuits challenging his administration's policies under Democratic Attorney General Xavier Becerra.

That litigation cost the state $42 million, according to Newsom's office, and netted some victories. In one case, California and New York successfully sued the U.S. Department of Energy in 2017 to allow energy efficiency standards to go into effect nationally, which were expected to save consumers $8.4 billion and prevent nearly 100 million tons of greenhouse gas emissions. Another victory won California $60 million in federal public safety grants, the governor's office said.

Once again, California's stand-off with Trump is likely to be a major force in state politics for the next four years. But this time around, Newsom is stressing that he's open to finding common ground with the former president. Meanwhile, Assembly Speaker Robert Rivas and Senate President Pro Tem Mike McGuire say they'll mostly be focusing not on resisting Trump but making California more affordable, CalMatters reported.

In fact, Newsom and Rivas have made overtures to California voters since Republicans nationally swept the November elections, reclaiming the White House and Senate and holding the House of Representatives. He made gains throughout the state in part because of discontent over inflation and living costs. In response, Newsom is touring conservative counties to highlight an economic development plan and has said that Democrats need to focus more on the economy. A spokesperson for Rivas did not return a request for comment by press time.

Nearly 30 new lawmakers were also sworn in at the Capitol on Monday. The new legislature includes a record-breaking number of women — 59 of its 120 members, one seat shy of the same number as men. Democrats still have complete control on state government, with supermajorities in both chambers of the legislature and holds on all executive seats.

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